

Bherulal vs Jamna on 10 July, 2023

Author: Farjand Ali

Bench: Farjand Ali

[2023:RJ-JD:19903]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Revision Petition No. 594/2023

Bherulal S/o Sh. Mangu Ji Jat, Aged About 54 Years, Nehru
Nagar, Reeth Road, Kotadi. Presently R/o Magistrate Colony,
Tilak Nagar, Dist. Bhilwara.

----Petitioner

Versus

Jamna W/o Sh. Bherulal And D/o Sh. Gambhir Jat, Kotdi,
Presently R/o Jaat Mohalla, Pur, Dist. Bhilwara.

----Respondent

For Petitioner(s) : Mr. P.R. Kumawat
For Respondent(s) : Mr. A.S. Rathore

HON'BLE MR. JUSTICE FARJAND ALI

Order

ORDER RESERVED ON	:::	05/07/2023
ORDER PRONOUNCED ON	:::	10/07/2023

BY THE COURT: -

1. By way of filing the instant Criminal Revision Petition challenge has been made to the order dated 12.05.2023 passed by the learned Family Court No.1, Bhilwara in Misc. Criminal Case No.333/2018 whereby the application filed by the respondent-wife under Section 127 of the Cr.P.C. was allowed and the amount of maintenance was enhanced to the tune of Rs.4,000/- per month.

2. Briefly stated the facts of the case are that marriage of the respondent was solemnized with the petitioner 24 years ago. Due to some discord, the parties separated themselves since the year 1999.

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3. An application under Section 125 of the Cr.P.C. came to be filed on behalf of the respondent-wife seeking maintenance for herself which came to be allowed vide order dated 05.10.1999 by the

learned Judicial Magistrate No.1, Bhilwara whereby the petitioner was directed to pay Rs.400/- per month to the respondent-wife. There is no dispute in this regard that parties were living separately and the amount of maintenance was being paid to her regularly. It appears that in the year 2017, a petition under Section 13-B of the Hindu Marriage Act was submitted before the learned Family Court, Bhilwara averring therein that their marriage was solemnized 24 years ago and due to temperamental differences and discord of common petulance, they were living separately. Every effort of reconciliation/re-union went into vain. It is specifically mentioned in the petition and the affidavit supported thereto that with the consent of the parties, the petitioner-husband had paid a sum of Rs.6,50,000/- towards lifetime amount of maintenance to the respondent-wife as agreed between them. Two bankers' cheque of the said amount had been received by the wife during the proceeding. The learned Family Judge vide its judgment dated 10.07.2017 had allowed the petition under Section 13-B of the Hindu Marriage Act and passed a decree of dissolution of marriage solemnized between them while specifically averring that the lifetime amount of maintenance had been received by the respondent-wife.

4. Subsequent thereto, the respondent-wife again moved an application under Section 127 of the Cr.P.C. on 13.07.2018 for [2023:RJ-JD:19903] (3 of 5) [CRLR-594/2023] enhancement of the amount awarded under Section 125 of the Cr.P.C. which has been allowed by the learned Family Judge vide order dated 12.05.2023 and the amount of maintenance has been enhanced from Rs.400/- to Rs.4,000/- per month which is to be paid by the petitioner-husband to the respondent-wife. The said order is under assail.

5. Heard learned counsel for the petitioner as well as learned counsel for the respondent. Perused the material available on record. More particularly, the petition under Section 13-B of the Hindu Marriage Act, affidavit annexed to the petition and the judgment and decree dated 10.07.2017.

6. Indisputably, the wedded life of the parties could not be subsisted and it seems that after some time of their marriage, a rift entered in their matrimonial life and the respondent-wife had left the company of petitioner-husband and used to reside separately.

7. The order of maintenance passed by the learned trial Court under Section 125 of the Cr.P.C. was never made to challenge by the petitioner-husband. It appears that due to intervention of members of the Society, the parties decided to resolve their dispute permanently and thus, an amount of permanent alimony was settled and as per the agreed terms, a sum of Rs.6,50,000/- was paid by the petitioner-husband to the respondent-wife as full and final settlement and lifetime maintenance in one go. The parties stated before the trial Court that they have arrived at the [2023:RJ-JD:19903] (4 of 5) [CRLR-594/2023] settlement voluntarily and with full knowledge and without any coercion or duress. Clear averments in this regard were made in the petition under Section 13-B of the Hindu Marriage Act and the affidavit annexed thereto. The learned Judge, Family Court too considered and observed the agreed terms and conditions in the decree of dissolution of marriage.

8. It is apprised to this Court that after expiry of the statutory period of passing of the decree of divorce, the petitioner had entered in the wedlock with another lady. The petitioner is a farmer and is the resident of a remote village of District Bhilwara. He is mainly and wholly dependent upon the

agricultural produce and now he is under an obligation to maintain his parents and second wife. Besides the above, it is perceived that the amount of Rs.6,50,000/- has already received by the respondent-wife as full and final settlement/lifetime amount of maintenance in one go. In these circumstances, it does not seem justifiable to allow the respondent-wife to further raise the question of enhancement of maintenance. Though, the question is not debatable that even after divorce a lady can get maintenance from her husband but the facts and circumstances of the case in hand are altogether different. In the given facts and circumstances of the case, when the amount of permanent alimony has been received by the respondent-wife then it does not seem appropriate to this Court to approve her prayer regarding enhancement of amount of maintenance. There is force in this revision petition and the petitioner deserves to be granted the relief craved for.

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9 Accordingly, the instant Criminal Revision Pe

and is hereby allowed. The order dated 12.05.2023 passed by the learned Family Court No.1, Bhilwara in Criminal Case No.333/2018 is hereby quashed and set aside. No order as to costs.

10. The stay petition and all pending applications if any, shall stand disposed of.

(FARJAND ALI),J 164-Mamta/-

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